

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

OCEIFFE HESLOP,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER JOSEPH
IOBBI (Shield 21087); NYPD OFFICER THOMAS
ACCOMANDO (Shield 8316); JOHN AND JANE DOE
NYPD POLICE OFFICERS/SERGEANTS 1-10Plaintiff designates Bronx
County as the place of trial.

Defendants.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 28, 2021Yours, etc.
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026TO: -THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
-OFC. JOSEPH IOBBI, 46 PCT, 2120 Ryer Ave, Bronx, NY 10457
-OFC. THOMAS ACCOMANDO, 46 PCT, 2120 Ryer Ave, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

OCEIFFE HESLOP,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER JOSEPH
IOBBI (Shield 21087); NYPD OFFICER THOMAS
ACCOMANDO (Shield 8316); JOHN AND JANE DOE
NYPD POLICE OFFICERS/SERGEANTS 1-10

JURY TRIAL DEMANDED

Defendants.

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Plaintiff OCEIFFE HESLOP, by his attorneys, Caitlin Robin & Associates, PLLC, as and
for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 5, 2020, at approximately 6:00 p.m., plaintiff OCEIFFE HESLOP, while lawfully at or around the intersection of Morris Avenue and E. 183rd Street, County of Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff suffered bruising and injuries to his hands, knee, shoulder and head, as well as mental and emotional injury. Plaintiff was subjected to unlawful assault and battery by police officers, was denied proper medical care, and unlawfully imprisonment at various locations for approximately 6 days before Plaintiff finally made bail. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, assaulted and battered, confined, falsely arrested, falsely imprisoned, failed to provide medical care and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff OCEIFFE HESLOP is a resident of the state of New York.
3. NYPD OFFICER JOSEPH IOBBI, Shield 21087, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD OFFICER JOSEPH IOBBI, Shield 21087, was at all times relevant herein, assigned to the 46 Precinct.
5. NYPD OFFICER JOSEPH IOBBI, Shield 21087, is being sued in his individual and official capacities.
6. NYPD OFFICER THOMAS ACCOMANDO, Shield 8316, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER THOMAS ACCOMANDO, Shield 8316, was at all times relevant herein assigned to the 46th Precinct.
8. NYPD OFFICER THOMAS ACCOMANDO, Shield 8316, is being sued in his individual and official capacities.
9. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 46th Precinct.
11. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law and filed on September 1, 2020.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On August 5, 2020, at approximately 6:00 P.M., Plaintiff was lawfully at or around the intersection of Morris Avenue and E. 183rd Street, County of Bronx, New York, when he was subjected to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers.

19. Plaintiff was lawfully barbecuing with friends from the neighborhood, when all of a sudden numerous police officers arrived on scene.

20. Without warning or reason, defendant police officers went to Plaintiff's location, where they tackled Plaintiff, punched him, and threw him to the ground.

21. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

22. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, and then unlawfully searched.

23. Plaintiff did not resist arrest.

24. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

25. As a result of being unlawfully tackled to the ground, Plaintiff suffered significant injury to his hands, shoulder, knee and arm.

26. Plaintiff begged for defendant Officers to take him to the hospital for his injuries, but defendant Officers refused.

27. Defendant officers told Plaintiff that he was crazy, and that Plaintiff didn't need to see a doctor.

28. Instead, Plaintiff was taken to the 46th Precinct, and subsequently to Bronx Central Booking, where he was fingerprinted, photographed, and eventually taken before a judge approximately 36 hours after his arrest.

29. During this time, defendant Officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to Assistant District Attorneys at the Early Case Assessment Bureau for Bronx County, to wit: Menacing of a Police Officer, in violation of New York Penal Law ("P.L.") §120.18; Menacing in the Second Degree, in violation of P.L. § 120.14(1); Criminal Possession of a Weapon in the 5th Degree, in violation of P.L. § 265.01(2); Criminal Mischief, in violation of P.L. § 145.00(1); Obstructing Governmental Administration, in violation of P.L. § 195.05; and Menacing, in violation of P.L. § 120.15.

30. Defendant Officer IOBBI signed a criminal complaint charging Plaintiff with the above-described charges, and attesting to manifestly false factual allegations, on August 6, 2020 at 7:15 P.M.

31. The criminal complaint also contained false statements of material fact from other Defendant Officers.

32. As a direct result of these false allegations, Plaintiff was ordered held on \$3500 bail by the arraigning Judge.

33. Plaintiff was unable to post bail until five (5) days later, during which time he was detained pre-trial at Rikers Island.

34. While at Rikers Island, Plaintiff was subjected to multiple assaults by Correction Officers and other inmates.

35. After his release, Plaintiff had to attend numerous court dates.

36. On June 23, 2021, all criminal charges against Plaintiff were dismissed and sealed.

37. Although the frivolous case is behind him, Plaintiff still suffers pain from his injuries every day. Plaintiff has trouble moving, and is in particular pain while sleeping or attempting to sleep.

38. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to

prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

39. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Assault

40. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

41. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

42. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Battery

46. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

47. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, struck Plaintiff with a fist, tackled him and threw him to the asphalt, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff.

48. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION
Unlawful Stop, Question, and Search

52. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

58. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
False Imprisonment

61. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

67. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to

Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

74. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

75. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

77. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

78. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to unlawful search and other physical constraints.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

85. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

JURY DEMAND

94. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff OCEIFFE HESLOP demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 28, 2021

By: 

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: -THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

-OFC. JOSEPH IOBBI, 46 PCT, 2120 Ryer Ave, Bronx, NY 10457

-OFC. THOMAS ACCOMANDO, 46 PCT, 2120 Ryer Ave, Bronx, NY 10457

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 29, 2021



CAITLIN ROBIN